



DECISION

Complaint No.

POS/246/2025/KM/KW

Name and address of the complainant

Mst. Nageena Bibi R/o House No.373, Block-I, Sector II, Siddique Akbar Colony, Baba Vilayat Ali Shah Colony, Orangi Town, Karachi.

Name of the Agency Complained against

Deputy Commissioner, District West Karachi

Name & Designation of Investigating Officer

Mr. Aftab Ahmad Khatri,
Director, Regional Office, Keamari (West)

Vetted by

1. Mr. Muhammad Naseer Jamali, Advisor-N
2. Mr. Masood Ishrat, Registrar

Subject

IN ACTION AGAINST ALLEGED ILLEGAL MIXING YARD / BLOCK THALLA IN RESIDENTIAL AREA OF BABA WILAYAT ALI SHAH COLONY, ORANGI TOWN, KARACHI

THE COMPLAINT

Mst. Nageena Bibi filed a complaint dated 17.11.2025 regarding establishment and operation of a block-making unit (Block Thalla) in the residential area of Baba Wilayat Ali Shah Colony, Orangi Town, Karachi. The complainant alleged that the said activity was causing noise, vibration and inconvenience to nearby residents and had allegedly resulted in cracks in portions of her house. It was further stated that despite approaching concerned authorities, no timely action was taken, therefore intervention of this Institution was sought.

PROCEEDINGS

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), after submission of the required affidavit (Form-A) along with supporting documents.

3. Comments were sought from the Deputy Commissioner, District West Karachi and the Director General, Sindh Environmental Protection Agency (SEPA). The Deputy Director (Technical), SEPA, vide letter dated 16.12.2025, submitted inspection report stating that SEPA monitoring team visited the site located at Plot No. 283, Sheet No. 01, Sector-11, Baba Wilayat Ali Shah Colony, Orangi Town, District West Karachi on 04.12.2025 with assistance of PS Iqbal Market.

4. During inspection, the team observed that M/s Rasheed Meo Rajput Tiles was engaged in manufacturing cemented tiles at the premises where one mixer machine and one vibrator machine were found installed. The representative present at site produced electricity bill but could not produce documentary evidence showing permission or approval for operating such activity at residential premises.

5. The team also visited complainant's house and observed cracks in certain portions of walls, which were attributed to vibrations allegedly caused by operation of machinery. Statements of residents were recorded. SEPA recommended that the matter may be referred to local administration for appropriate action in accordance with law.

6. This office also took up the matter with Deputy Commissioner, District West Karachi vide letter dated 17.12.2025 for taking action on the basis of report submitted by SEPA. Accordingly, the Deputy Commissioner, District West Karachi took action and sealed the premises where illegal manufacturing activity was being carried out.

7. During pendency of proceedings, the intervener, Mr. Muhammad Rasheed s/o Chandar Khan, approached the Hon'ble High Court of Sindh through Constitutional Petition No.D-54/2026 challenging the orders passed under Section 133 Cr.P.C. and directions relating to removal of machinery. The Hon'ble High Court vide judgment dated 29.01.2026 dismissed the petition as not maintainable, observing that the order passed by the Ombudsman is appealable before the Governor whereas order passed by learned Magistrate under Section 133 Cr.P.C. is amenable to revisional jurisdiction before competent court. The earlier de-sealing orders were maintained in the field.

8. Subsequently, the intervener appeared before this Office and submitted an undertaking stating that he is law-abiding citizen and is willing to shift machinery to a suitable location permissible under law and that no industrial activity shall be carried out at the residential premises in future.

9. The matter was heard on 12.03.2026 wherein both parties appeared. The complainant expressed concern regarding nuisance previously caused, whereas the intervener assured compliance with law and requested reasonable time for shifting machinery.

FINDINGS

10. Record indicates that block manufacturing activity was being carried out at the subject premises situated in residential locality. The inspection report of SEPA confirms presence of machinery used for cement block manufacturing. The operator was unable to produce approval or authorization required for industrial activity within residential limits under applicable regulatory framework. At the same time, it is observed that the intervener has expressed willingness to comply with legal requirements and has voluntarily undertaken to discontinue industrial activity at the premises and to shift machinery to an appropriate location. The Hon'ble High Court of Sindh has also not interfered with the lawful regulatory process and has left the parties to avail remedies under the relevant legal framework.

11. It is well settled that regulatory measures should aim to ensure compliance of law while avoiding unnecessary hardship, particularly where the affected party shows readiness to rectify the position. In the present matter, the grievance of the complainant stands substantially addressed as the activity at the premises has been stopped and assurance has been given that the same shall not be resumed. Therefore, ends of justice would be adequately met by adopting a balanced approach ensuring removal of nuisance while allowing reasonable opportunity to the intervener to shift machinery and continue lawful business activity at a permissible location, subject to fulfilment of codal formalities. The undertaking furnished by the intervener is taken on record and shall remain binding upon him.

(3)

DECISION

12. In exercise of powers vested under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991, the complaint is disposed of with following directions:

- a) The Deputy Commissioner, District West Karachi is directed to ensure that the premises in question shall not be used for any industrial or commercial activity in violation of law.
- b) The premises may be de-sealed only for the limited purpose of enabling the intervener to remove / shift machinery and material within a specified time under supervision of the concerned authorities.
- c) The Director General, Sindh Environmental Protection Agency (SEPA) is directed to monitor compliance and ensure that no such illegal industrial activity is allowed to operate in residential areas in future, in accordance with environmental laws.
- d) The Deputy Commissioner, District West Karachi shall ensure strict compliance of relevant laws to prevent establishment of illegal industrial units in residential areas so as to safeguard public health and safety.

Given under my hand and seal of the office



Sd /-

(MUHAMMAD SOHAIL RAJPUT)
Sitara-e-Imtiaz, PAS
Ombudsman, Sindh
Karachi, the 31st March, 2026